

AMERICAN BEAUTY

Lawsuit: Badderies

Jose Trujillo bought an iPhone for \$500. He was not happy when he learnt, from the Internet, that its battery would function at only 80 per cent of its original capacity after 400 recharge cycles (a full battery drain followed by a full charge).

In true-blue American fashion, Trujillo decided he'd exercise his legal rights as a resident of the United States. In simple words, he saw a lawsuit here. Apple was soon sued for "concealment of information," and for charging customers \$85.95 (visit www.xe.com, "The World's Favorite Currency Site") as part of the battery replacement programme.

Some technicalities are warranted here—the one-year warranty on the iPhone entitles one to a new battery for free if its charging capacity drops below 50 per cent. There is also a provision to extend that warranty to two years by

Mutiny!

Ever heard of those bosses who won't "sink" to the level of their teams? Sure you have—they're the ones who'll get things done without actually *doing* them. Deepak, our most exalted grand poo-bah, is such a boss. It's not necessarily a bad thing (the writer's adding this bit to stay in the ed's good books, obviously—unlike you, *he* knows who's typing this) but we've often wished he'd see the view from the Bottom every once in a while—to experience all the trials, tribulations, hardships and betrayals, and to have someone nag *him*, for a change.

And then came the day that Ram, likely under the influence of a substance or substances unknown, decided that enough was too much. "Deepak," he said, "the

time has come. Many long months have passed, and you have come of age. We seek stories for *Enter* (that's what this magazine starts with, incidentally); and you must contribute in the effort."

But, dear reader, our ed—he's made of sterner stuff than you'd think. He squirmed for but a half-second, and then with the skill of an Olympic fencer and the stealth of a cat burglar, dodged the topic completely, leaving Ram in a blur. And poor, brave Ram, inexperienced as he was in the ways of The Executive, suddenly found himself saddled with the very work he came to get Deepak to do! And so, the balance of power restores itself.

Perhaps we'll be editors of our own magazines someday, and become masters in this mystical art form.

DIGIT DIARY

paying \$69 (visit www.xe.com again). And the two central points here: (a) Trujillo, rather, his lawyer, claimed he didn't know the battery was sealed inside the phone, and (b) "The battery enclosed in the iPhone can only be charged approximately 300 times before it will be in need of replacement, necessitating a new battery annually for owners of the iPhone." Aha. He even wanted a class

action suit. But according to Apple, the battery "is designed to retain up to 80% of its original capacity after 400 full charge and discharge cycles." When contacted, Trujillo was unaware of any incorrect information in his lawsuit, and was hoping to reach a settlement with Apple. Commentary is warranted.

1. An American lawsuit is one that says "I didn't know this at the time."

2. A dumb lawsuit is one that doesn't look up the facts and presents a flawed case.

3. A fanatabulously dumb lawsuit—one that qualifies as the worst ever—is one that tries to make its way to the class action league.

Here's what Steve Jobs said when he read about this one: "Awright, naxt." Now file a suit against us for making up stuff. ■

Blog WATCH

The much-talked-about Skype outage has burnt a hole in eBay's credibility—at least, bloggers seem to think so. And Google News manages to pique the scribes... yet again

Om Malik on the Skype outage of mid-August
<http://tinyurl.com/2qb5bv> (<http://gigaom.com/2007/08/18/skype-crisis-where-were-the-ebay-management/>)

The outage that caused anxiety amongst millions who depend on Skype for communications exposed the fragility of our digital lives. Ebay and Skype management are happy to talk to the press when delivering the good news, but in this crisis situation, the silence was deafening.

Ebay CEO Meg Whitman, Skype co-founder Niklas Zennstrom, and other Skype management made no statement, gave no assurances to their community, leaving their PR agency and the blog to keep people informed. Of course, this led to even more speculation, rumours and innuendoes.

Karin Meier talks about the Burning Man festival... in Second Life, that is
<http://tinyurl.com/2fpjdc>
(<http://blogs.msdn.com/karinm/archive/2007/08/17/burning-life-a-virtual-burning-man.aspx>)

I've always wanted to go to Burning Man, the annual countercultural arts festival, but with both Windows Server 2008 and Visual Studio 2008 screaming towards RTM I can't possibly take time for a jaunt to

the Black Rock Desert in Nevada. Luckily, I can easily visit the virtual Burning Life in my Second Life. This will be the fifth year that Second Life publisher Linden Lab is donating some virtual land in their virtual world for a virtual Burning Man festival.

Just like the Burning Man in the real (?) world, organisers will create a temporary zone in which residents can create amazing works of art that will last for a short period and then disappear forever.

Adding comments on Google News is "original and fresh," says Philipp Lenssen
<http://tinyurl.com/2lm67c> (<http://blogoscoped.com/archive/2007-08-08-n65.html>)

Google News USA is rolling out an experimental feature that lets people or organizations who are part of a news story add a comment to the news.... You can start by searching for your own name in Google News. For any story you find that you feel deserves a second view, you can then write to news-comments@google.com.

I'm curious to see how this Google News process will work out; it's an original, fresh way to look at news aggregation. News reports already often interview "all sides" of the story, but they don't always do—and they might also use selective quoting to skew an issue, to push through an agenda of the publishing house...